

102	JPMorgan Chase Bank, N.A. vs. LJT Holdings II LLC 25-01514141	Motion to Be Relieved as Counsel of Record John P. Swenson, Janae L. Hill, and Arden Burstein (“Moving Counsel”) move to be relieved as Counsel of Record for Defendant LJT Holdings II, LLC. The instant motion to be relieved as counsel originally came on for hearing on June 16, 2026. On June 16, 2026, the Court continued the motion to July 28, 2026, and ordered Moving Counsel to file proof of service of the moving papers on the client no later than nine (9) court days before the continued hearing date. (ROA 26.) The Court also ordered the moving party to give notice. (Ibid.) Accordingly, proof of service of the moving papers on the client was due by July 15, 2026. As of July 21, 2026, no proof of service has been filed. Additionally, there is no showing that Moving Counsel gave notice of the continuance. Based on the foregoing, the motion to be relieved as counsel of record is DENIED, without prejudice. Moving Counsel to give notice
103	Ratliff vs. Ponce 22-01255666	Motion to Be Relieved as Counsel of Record x 2 Sarah F. Hinks (“Moving Attorney”) moves to be relieved as counsel of record for plaintiffs James Ratliff and Vicki Ratliff. The motions are unopposed and Moving Attorney has stated a basis for permissive withdrawal under the Rules of Professional Conduct, Rule 1.16. The moving papers were served on the clients’ last known address by mail as well as by email. However, the proof of service does not indicate that all other parties have been served, as required by California Rules of Court, Rule 3.1362(d). Moving Attorney is ordered to provide proof of service of the moving papers at or before the hearing. If Moving Attorney

		shows that the moving papers were properly served on all parties, the motions will be GRANTED. The orders relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order on the clients and on all parties that have appeared in the case. (California Rules of Court, Rule 3.1362(e).) Moving Attorney to give notice
105	Beltran vs. Universal Care, Inc. 22-01269141	Motion to Lift Stay and Restore Case Plaintiff Dr. Robert Beltran, M.D. moves for an order lifting the stay imposed when the Court ordered arbitration and restoring the case to the active civil docket. The motion is GRANTED. “In an employment or consumer arbitration that requires, either expressly or through application of state or federal law or the rules of the arbitration provider, that the drafting party pay certain fees and costs during the pendency of an arbitration proceeding, if the fees or costs required to continue the arbitration proceeding are not paid within 30 days after the due date, the drafting party is in material breach of the arbitration agreement, is in default of the arbitration, and waives its right to compel the employee or consumer to proceed with that arbitration as a result of the material breach.” (CCP § 1281.98(a)(1).) In Hohenshelt v. Superior Ct., the California Supreme Court held that the penalties for failure to make timely payments of arbitration fees under Section 1281.98 could be subject to relief under certain circumstances of good faith conduct and excusable neglect. More specifically, a “drafting party can avoid forfeiture of its right to arbitration by showing that the delay was excusable under section 473, Civil Code section 3275, or Civil Code section 1511, the background principles that generally apply to other contractual obligations.”